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H.JD/C-41

BLUE SLIP

(Revised: under Act No. II of 1990)

ORDER OF THE COURT.

In the Court/Tribunal:

Case No. WP-6417-09 Title Muhammad Ashfaq vs. S.D.C.O

Decided on: 10-12-13

(a) Judgment approved for reporting: ✓Yes/No.

(b) Registrar should see with reference to the work or conduct of some judicial officer. Yes/No.

(c) If so, a separate confidential note should be sent to him in question. Yes/No.

CERTIFICATE.

Certified that the judgment/order is based upon or enunciates a principle of law/decides a question of law which is of first impression/distinguishes/over-rules/reverses/explains a previous decision.

Judge(s)/Presiding Officer

Strike out whichever is not applicable.

Note:-

(1) This slip is only to be used when some action is to be taken

(2) If the slip is used, the Reader must attach it to the top of the first page of the judgment.

(3) Reader must ask the Judge writing the Judgment whether the Judgment is approved for reporting.

(4) Those directions which are not to be used should be deleted.

To be used by I.T.

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Name: _____

Signature: _____

Dated: _____

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JUDGMENT SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN.
JUDICIAL DEPARTMENT

Case No. W.P. 6417 of 2009

Muhammad Ashfaq & 4 othrs Versus Sub-Divisional Canal Officer, Senchanwala Sub-Division & 15 others.

JUDGMENT.

Date of hearing	10.12.2013
Petitioners by :	Ch. Sagheer Ahmad, Advocate
Respondents No.3 to16 by:	Mian Muhammad Jamal, Advocate Khalid Mehmood Ziladar.

SHOAIB SAEED, J., This appeal is directed against the impugned order dated 21.07.2009 passed by Divisional Canal Officer respondent No.2.

2. Brief facts of the case are that an application under section 68 of the Canal and Drainage Act No.VIII of 1873 read with Punjab Amendment Act 1975 for sanction of canal water from outlet No.22010 /R-I Rajbah 1-L/6-R Chak No.52/WB Tehsil and District Vehari was filed by the petitioners with respondent No.1. Petitioners purchased 42.33 acre agriculture land where-after application for sanction of canal water was moved. It was mentioned in the application that the area is included in CCA (Cultivable Command Area) so under section 68 of the Canal & Drainage Act No. VIII of 1873 read with Punjab Amendment Act 1975 the said area is required to be included in the Warabandi.

3. Respondent No.1 marked the application to concerned Ziladar who after spot inspection

submitted his report that on this CCA Mogha has capacity of 753 acres and *Warabandi* is on 699.88 acre of land, it still has capacity of 53 acres of canal water. Respondent No.1 after hearing the parties /share-holders and in the light of report by Ziladar and examination of record sanctioned canal water to the petitioners and ordered for its inclusion in *Warabandi*. *Warabandi* was accordingly amended and names of the petitioners after inclusion are mentioned at serial No.18 of the *Warabandi* in relevant *Rajbah*.

4. Against order passed by respondent No.1, appeal was filed with respondent No.2 which was accepted and order passed by respondent No.1 was set aside.

5. Learned counsel for the petitioners contends that the appeal was patently barred by time; that under section 68(3) of the Act ibid any person aggrieved under subsection(2) may within 15 days of passing of such order can file an appeal with Divisional Canal Officer. Application under section 5 of the Limitation Act was also filed along with the said appeal. Respondent No.1 passed order on 29.10.2008, the order was assailed on 18.06.2009. Respondent No.2 in his order did not touch the point of limitation. It was averred that where limitation is provided in the statute itself section 5 of the Limitation Act is not applicable. Reliance was placed on *Muhammad Bashir and another versus Province of Punjab through Collectorof District Gujrat and others* **(PLJ 2003 SC 403)**, *Allah Dino and another versus Muhammad Shah and others* **(2001 SCMR 286)**, *Mughla and others versus Jaffar and others* **(2001 CLC 1410(Lahore)** and *Central Board of*

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Revenue, Islamabad through Collector of Customs Sialkot Dry Port, Samberial, District Sialkot and others versus Messrs Raja Industries (Pvt) Ltd. through General Manager and 3 others **(1998 SCMR 307)**. That even otherwise respondent No.2 had no jurisdiction to condone delay under section 5 of the Act ibid. Reliance was placed on *Ahmad Khan Vs. Kausar Parveen* **(2009 CLC 759)**; that the appeal was patently barred by time.

6. Petitioners after amendment of *Warabandi* started irrigating their land. It was pointed out that appeal was filed on 18.06.2009, whereas note on said page of the appeal evidences to the fact that status quo granted and the date below mentioned is 17.06.2009. Canal water was sanctioned in favour of the petitioners but in the memorandum of appeal only petitioners No.1 to 3 have been impleaded as party whereas petitioners No.4 and 5 have been left out, this material aspect while deciding the appeal was ignored by respondent No.2. Petitioners purchased their land and share of each petitioner is mentioned in Register Haqdaran-e-Zamin, therefore, canal water was accordingly sanctioned separately by respondent No.1. Single appeal without impleading petitioners No. 4 & 5was not competent, the order passed by respondent No.1 was set aside completely, which was unwarranted in law. It was contended that respondent No.2 in impugned order reasoned that the land was allotted under the Tube-Well Sinking Scheme, so without obtaining NOC from the District Collector no canal water could be sanctioned, this was factually incorrect as land was not the ownership of the Provincial Government but petitioners are vendees/purchasers.

Right of ownership even under section 30 of the Colonization of Government Land Act 1912, stands transferred in favour of the petitioners. Thus there was no need to obtain NOC before filing application for sanction of canal water. There is no bar for sanction of canal water in favour of the vendees who purchased property after grant of proprietary rights from original allottees. Respondent No.2 erred in law by giving such a finding. Moreover, quite a few persons enjoying the same status have been sanctioned canal water. According to KHAKA DASTI watercourse which irrigates land of different owners included in C.C.A including that of the respondents passes through the land of petitioners and the sanctioned NAKKA is also situated in the land of the petitioners. Report by Ziladar that petitioners have no other source of irrigation is also material. This important aspect was not examined by respondent No.2. The order passed by respondent No.2 is patently unlawful and unwarranted in law.

7. Conversely, it was argued that writ is not competent as questions of fact are involved which require evidence on the point in issue, petitioners should file a civil suit. In petitioners case section 68 of the Act ibid is not applicable, petitioners should have moved their application under section 20 of the said Act to respondent No.2. Section 68 is attracted between shareholders, whereas petitioners are neither shareholders nor recipients for not being owners in land but as they were in need of water under such circumstances application lay under section 20 of the Act ibid to respondent No.2 who after hearing the parties and examination of record makes proposals and sends to Superintending Canal Officer whose

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decision is binding on all effectees caused by the said change. The land was allotted under Tube-Well Sinking Scheme, obtaining NOC from District Collector was mandatory. As is evident from History-sheet *Moga,* land is shown not cultivable in column No.7 *(ghair mumkin), warabandi* was not implemented. Rule 82 of the Rules under the Canal And Drainage Act, 1873 provide a period of thirty days for presenting an appeal, in its explanation it is provided that appeal may be admitted, even after the prescribed period if the appellant satisfies the court that he had fresh cause in respect of filing of appeal within the given period, therefore, the appeal filed was competent which was filed strictly within the meaning of section 84 of the Rules ibid. Respondent No.2 had powers to summarily reject the appeal if found unnecessary under section 85 of the Rules ibid. Reliance was placed on *Munshi versus Ali Muhammad* (**1980 CLC 234**), *Muhammad Naseem Khan and another versus Govt. of N.W.F.P. through Secretary, Department of Cooperative, Peshawar & 24 others* **(1990 CLC 1693(Peshawar)**, *Muhammad Idrees and others versus Superintending Engineer and others*(**1996 CLC 1747**), wherein distinction was drawn in respect of section 68 and section 20 of the Act ibid. Order passed by respondent No.2 is with jurisdiction and in accordance with law.

8. Arguments heard and available record perused.

9. From record it is evident that petitioners are vendees/purchasers. Watercourse irrigating land of different owners, included in CCA, passes through the land of the petitioners and sanctioned NAKKA is also situated in their land. The land was not allotted under Tube-Well Sinking Scheme as contended by

the learned counsel for the respondents, it was purchased by the petitioners, thus there was no need to obtain NOC from District Collector. The right of ownership under section 30 of Colonization of Government Land Act, 1912 stood transferred in favour of the petitioners. Report of Ziladar is significant as it mentions that CCA Moga has capacity of 753 acres whereas *warabandi* is to the extent of 669.88 acres of land only and it still has capacity to feed canal water to 53 acres of land. Since petitioners purchased 42.33 acres agricultural land, keeping in view the capacity of C.C.A. Moga petitioners' land could easily be accommodated.

10. Section 20 is attracted when a person not already enjoying water supply requires canal water for his land and such supply is to be conveyed through already existing watercourse, or when any person obtained land in which water is not previously sanctioned and he wants to get it included in the warabandi of any outlet. But if land already stands included in the Chakbandi and CCA of any outlet the owner of such land can get his land included in the warabandi under section 68. Because the water of such land is already flowing in the watercourse, therefore, section20 is attracted only for a fresh supply for any other land which is not already in C.C.A.. or is not in Chakbandi of such outlet.

11. Section 20 further applies when site of any outlet is required to be changed, perhaps comes in the purview of words, "change of source of irrigation". If site of outlet is changed under section 20, distribution of water among the shareholders of such changed outlet will be done under section 68. The original jurisdiction entertaining any application

under section 68 lies with SDCO and Divisional Canal Officer possess the appellate power. The order of SDCO and DCO under section 68 is challengeable in the Civil Court if these are against provisions of section 68 or some other irregularities pertaining to jurisdiction appear therein. No such discrepancy is found in the present case. Petitioners land being already included in the Chakbandi and CCA, water of such land was already flowing in the watercourse, therefore, the application was rightly filed under section 68 of the Act ibid.

12. Ziladar present in court along with relevant record produced copies of extract Fard and also admitted the fact that petitioners land fall in CCA and they were owners of the property.

13. There is no denying the fact that the order was passed by respondent No.1 on 29.10.2008 which was assailed by the respondents on 18.06.2009. Respondent No.2 in his order failed to address the basic question raised by the petitioners with regard to question of limitation. The appeal filed before respondent No.2 was patently barred by time. Even under Rule 82 of the Rules under Canal & Drainage Act, 1873, it is expressly provided that any appeal admitted after prescribed period of thirty days as given in the said rule, appellant has to satisfy the Court that he had sufficient cause for not presenting the appeal within such period. Respondent No.2 in his order dated 21.07.2009 failed to address this basic question of law.

The judgments cited by learned counsel for the respondents are distinguishable on law and facts and as such are not attracted to the facts of this case.

14. In view of above, the order dated 21.07.2009 passed by respondent No.2 is set aside and the writ petition in hand is allowed.

(SHOAIB SAEED)
JUDGE

Approved for Reporting

Judge

*G.M.Bhatti/**